

On Housing Relations - Private Lease Extract (2026 amendments applied)

Law of the Republic of Kazakhstan “On Housing Relations” - Private Lease Extract (Extended)

Source: Law dated 16 April 1997 No. 94, as amended by Law No. 306-VIII dated 11 June 2026 (item 18 of that amending law), unofficial translation. Contains only the provisions relevant to private lease/rental of dwellings between individuals (landlord-tenant, tenant-subtenant). All state housing stock, corporate/condominium governance, and public-body provisions have been removed.

KEY SUBSTANTIVE EFFECT OF THE 2026 AMENDMENT ON THIS EXTRACT: a tenant, subtenant, or temporary resident who does not voluntarily vacate a dwelling can now only be removed by court decision - this is now stated explicitly in Articles 23, 24, 25, 26, 27 and 30 (previously several of these provisions did not spell out the judicial requirement). Passages changed by the amendment are marked [2026 AMENDMENT].

GENERAL PRINCIPLE (Article 8)

1. Disputes arising from housing relations are resolved by court.
2. Eviction of citizens and legal entities from occupied housing units is allowed only on grounds established by this Law, through judicial proceedings.

Article 9. Rights of foreign nationals and stateless persons (selected)

1. Foreign legal entities and foreign nationals have equal rights and obligations in housing relations in the Republic of Kazakhstan as legal entities and citizens of the Republic of Kazakhstan, unless the laws of Kazakhstan establish otherwise.
2. Stateless persons permanently residing in the Republic of Kazakhstan bear equal housing-relation rights and obligations as citizens of the Republic of Kazakhstan.

Article 18. Basic rights of the owner of a dwelling place (selected)

1. Owners of dwelling places have the right to sell, exchange, gift to other persons, pledge, or otherwise dispose of them at their own free choice, provided this is not inconsistent with the legislation of the Republic of Kazakhstan. (This is the underlying ownership right from which the right to lease out a dwelling, described in Chapter 4 below, derives.)

DEFINITIONS (Article 2, selected)

- rental house - a multi-apartment residential building, owned by an individual or a legal entity, the apartments in which are intended for rent.
- lender (landlord) - a party to the lease contract for a dwelling, who is the owner of the dwelling or a person authorized by the owner to rent out the dwelling.
- tenant - a party to a dwelling lease contract, who receives a dwelling or a part of it for use.
- private housing fund - dwellings owned by individuals or non-state legal entities.
- sub-tenant - a party to a dwelling sublease contract, receiving a dwelling or part of it for use from a tenant.
- lease/rent of dwelling place - provision of a dwelling place or part thereof to tenant (lessee) in permanent or temporary ownership and for a fee.
- dwelling rental contract - a contract according to which the lender grants the right to use the dwelling or part of it to the tenant for a fee.
- dwelling sublease contract - a contract between the parties, according to which the sub-tenant receives the right to use the dwelling or part of it for a fee.

Article 21. Family members of dwelling place owner (para. 3)

3. The provisions of this Article apply to the family members of the tenant (subtenant).

Article 22. Basic rights and obligations of family members of dwelling place owners

1. Family members of owners settled in dwelling places belonging to that owner have the equal right to use a dwelling place, unless otherwise stipulated during their settlement. They may settle their minors in a dwelling place provided to them by the owner. Settlement of other family members is allowed only with the consent of the owner.

In case of termination of family relations with the owner, the former family members may use a dwelling place with tenants' rights without specification of term of lease, unless otherwise provided by written agreement with the dwelling place owner. By this, the former family members are obliged to share in dwelling place maintenance costs and payments for utility services.

2. Family members of a dwelling place owner may demand the elimination of violations of their rights by any person committing the violation, including the owner.
3. Adult family members (former family members) of the owner bear joint financial responsibility for obligations arising from their use of a housing unit.

CHAPTER 4. Leasing of dwelling places in private housing stock

Article 23. Lease of dwelling place by owner to other persons

1. The owner may lease a dwelling place, in which he/she lives, or a dwelling place the primary purpose of which shall be provided to tenants for permanent or temporary residence.
2. Living conditions (term, amount of lease payment, distribution of repair obligations, grounds for [2026 AMENDMENT] release of the dwelling by tenants, etc.) are determined by this Law and by the agreement between a lender and tenant.
3. The persons to whom a dwelling place is leased are chosen by the owner.

3-1. The owner or person authorized by the owner to lease a dwelling place is obliged to register the persons living in the leased dwelling place, in the manner prescribed by the legislation of the Republic of Kazakhstan.

Article 24. Terms of lease of dwelling place in which owner does not reside

1. A private housing stock dwelling place in which the owner resides may be provided to another person for lease under a written agreement.
2. A dwelling or a separate room (rooms) suitable for living, meeting construction, sanitary and epidemiological, fire-prevention and other mandatory requirements can be provided for rent.
3. The tenant has the right to move his family members, sub-tenants and temporary residents into the rented dwelling, unless otherwise provided by the lease contract.
4. The tenant has the right to leave the rented dwelling place for up to six months, unless otherwise provided by the contract. In case of a longer absence, the contract remains valid only with the consent of the lender.
5. The lease contract is terminated upon the expiration of the period established by the parties or occurrence of the circumstance specified in the contract. Early termination of the contract at the request of the lender is allowed if the tenant does not comply with the terms of the lease contract, as well as on other grounds and conditions provided for by this Law.

[2026 AMENDMENT - replaces prior wording] A contract that does not provide for a period of validity and other grounds for termination may be terminated by the lender at any time with warning of the tenant at least three months in advance. Upon termination or dissolution of the contract, the tenant, together with all persons living with him/her, must vacate the dwelling. Otherwise, the tenant, together with all persons living with him/her, may be evicted on the basis of a court decision, without provision of another dwelling.

6. If the tenant cancels the agreement early, he/she must notify the lender accordingly no less than one month before, or pay the charge specified by the agreement for that month. The specified term is reduced accordingly if less than one month elapses before the term provided by the agreement, or if other circumstances that terminate the agreement's validity occur.
7. A family member of the tenant, living with him/her in accordance with the terms of the lease contract, acquires the same right to use the dwelling as the tenant himself/herself, unless otherwise agreed between him/her and the tenant when the family member moved in. The circle of family members is determined in accordance with Article 21 of this Law.
8. When the right of ownership of a dwelling is transferred to another person, the lease contract remains in force for the new owner, unless otherwise provided by the contract between the tenant and the owner who rented the dwelling.

Article 25. Conditions of lease of dwelling place, in which the owner permanently resides

1. In a dwelling in which the owner permanently resides, a tenant may be provided with a dwelling or part of it, including an adjoining room or part of a room, for rent. If several owners live in a dwelling, the consent of all owners is required to rent out the dwelling.
2. Tenants do not have the right to settle other persons, including their family members, without the owners' agreement.

3. [2026 AMENDMENT - replaces prior wording] Upon expiry of the tenancy period, the tenant does not acquire the right to renew the contract and, at the landlord's demand, must vacate the dwelling. Otherwise, the tenant may be evicted on the basis of a court decision, without provision of another dwelling. The lease agreement may be terminated at the landlord's demand ahead of schedule if the tenant fails to comply with the lease agreement terms, as well as in the presence of justifiable unforeseen circumstances.
4. Lease agreements concluded without specification of term may be terminated by a lender at any time without explanation of reasons. The lender must notify the tenant of termination of the lease agreement not less than one month before.
5. Tenants have the right to cancel the lease agreement in advance and without notification, unless the agreement provides otherwise.

Article 26. Legal status of sub-tenants and temporary residents

1. The subtenant's accommodation conditions - specifically duration of residence, the amount and order of payment - are determined by the agreement between the tenant of the dwelling and the subtenant.
2. The sublease agreement is terminated upon expiry of the term established by the parties, or in circumstances mentioned in the agreement.

Early termination of the agreement at the tenant's request is possible if the sub-tenant violates the agreement, and, if the agreement does not establish the term or other grounds of termination, at any time provided the sub-tenant is given not less than one month's notice.

3. A sub-tenant has the right to cancel the agreement at any time, unless otherwise provided by the sublease agreement.
4. [2026 AMENDMENT - replaces prior wording] Upon termination of the sublease agreement or its dissolution by the tenant, the subtenant must vacate the dwelling. Otherwise, the subtenant may be evicted on the basis of a court decision, without provision of another dwelling.
5. [2026 AMENDMENT - replaces prior wording] The tenant has the right to move temporary residents into the dwelling without concluding a sublease agreement with them. The living conditions of temporary residents are determined by the tenant. Temporary residents must vacate the dwelling at the tenant's request, at any time, with at least seven working days' notice. Otherwise, they may be evicted on the basis of a court decision.

Article 27. Release of dwelling by sub-tenants and temporary residents upon termination of the lease agreement

[2026 AMENDMENT - replaces prior wording, including title] Upon termination of the lease contract, the sublease contract terminates at the same time. Upon termination of the lease contract, subtenants and temporary residents must vacate the dwelling. Otherwise, they may be evicted on the basis of a court decision.

Article 30. Release of dwelling by family members of the owner and other residents

[2026 AMENDMENT to title and para. 2; para. 1 unchanged]

1. Upon compulsory termination of the right of ownership of a dwelling place on the grounds provided by subparagraphs 2), 4) and 5) of paragraph 1 of Article 29 of this Law (requisition; compulsory alienation of the land plot for state needs; demolition of an emergency building), the owner's (former) family members are removed from the dwelling place and acquire the right of residence in the dwelling place obtained as compensation for the former dwelling place. Other persons residing in the former dwelling place are evicted without provision of another housing unit.
2. [2026 AMENDMENT] Upon termination of the right of ownership to a dwelling place (housing unit) at the choice of the owner (sale, gift), the owner's family members, former family members, and temporary residents must vacate the dwelling without provision of another dwelling, unless otherwise provided by agreement with the acquirer of the dwelling. Otherwise, they may be evicted on the basis of a court decision.

Termination of ownership affecting the interests of minors who own the dwelling place is governed by paragraph 3 of Article 13 of this Law (in substance: alienation of a dwelling jointly owned with a minor requires the consent of all owners and the approval of the guardianship and trusteeship authority - the surrounding Article 13 itself concerns privatization of state housing and is out of scope of this extract).

Article 36. Obligations of the tenant (subtenant) (selected - behavioral obligations only)

1. The tenant (subtenant) of an apartment has the right to permanently or temporarily own or use an apartment (or part thereof) only on the basis of a lease (sublease) or rental agreement.
2. The tenant (subtenant) of an apartment, in addition to obligations established by the laws of the Republic of Kazakhstan, bears other obligations, including:
 - compliance with noise regulations, including the prohibition on carrying out, within the apartment or outside thereof, works accompanied by noise not related to urgent necessity, which hinder the normal rest and peace of citizens during specified hours;
 - consumption of tobacco products, including heated tobacco products, hookah tobacco, hookah mixtures, and tobacco heating systems, only in specially designated areas;
 - compliance with construction, sanitary, environmental, fire safety, and other mandatory standards and regulations established by the legislation of the Republic of Kazakhstan.